

TAB 25



Board of Education Report

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Ms. Gonez - Standing for Immigrants Against the Biden Administration's Asylum Rule (Res-025-22/23)
(Waiver of Board Rule 72)

Whereas, The immigrant community is an integral part of Los Angeles' diversity, culture, and economy, comprising 33% of its population;

Whereas, Los Angeles Unified School District proudly welcomed more than 13,000 International Newcomer students in the 2021-2022 school year, providing the supports they need to be successful in school, college, career and life;

Whereas, LA Unified's Strategic Plan has equity as one of its three core beliefs and specifically identifies our immigrant community as a student population for support against bigotry and discrimination;

Whereas, The Governing Board of the Los Angeles Unified School District is committed to promoting and protecting the rights of all individuals, including migrant families seeking safety and asylum within the United States, and providing them with a welcoming, compassionate, and humane school environment in which to begin rebuilding their lives;

Whereas, The Board has demonstrated a long-standing commitment to the safety of its immigrant students, families, and staff at all District sites through past resolutions including "L.A. Unified Identifying Campuses as Safe Zones and Resource Centers for Students and Families Threatened by Immigration Enforcement" (Res-032-15/16), "Reaffirmation of Los Angeles Unified School District Schools as Safe Zones for Families Threatened by Immigration Enforcement" (Res-093-16/17), and "SOMOS LAUSD: Declaring Los Angeles Unified School District's Opposition to Migrant Youth Detention Facilities in Our Communities" (Res-027-19/20);

Whereas, The Trump administration instituted Title 42 during the COVID-19 public health emergency, which eliminated legal pathways for people seeking asylum and allowed authorities to detain and expel migrants at U.S. land borders; the Title 42 policy led to 2.8 million expulsions of individuals and families, according to U.S. Customs and Border Protection;

Whereas, Though Title 42 has expired alongside national COVID-19 emergency restrictions, the policy has been replaced by similar, equally harmful restrictions under the Biden administration that violate the temporary protected status of migrant asylum seekers and their right to due process;

Whereas, Those policies, including the "Circumvention of Lawful Pathways," which turns away anyone seeking asylum who has not first been denied protection in a country they traveled through; who has not secured advanced permission to enter the U.S.; or who did not apply online for a port of entry appointment; exceptions so narrow as to amount to an asylum ban, leading to the continued violation of human rights while failing to address the underlying causes of migration; and

Whereas, The Board recognizes that the detention of migrants, including children and families, has long-lasting detrimental effects on their physical and mental well-being, exacerbating trauma and compromising their rights and dignity; now, therefore, be it

Resolved, That the Governing Board of the Los Angeles Unified School District remains firm in its commitment to create a welcoming and safe educational environment for migrant asylum seekers and their families and will continue leveraging programs such as the We are One campaign to provide them with the necessary support and resources to help them acclimate to their lives in the United States of America;

Resolved further, That the Board condemns the Biden Administration's policies regarding migrant asylum, specifically its rule on "Circumvention of Lawful Pathways" that replicates Trump-era asylum rules and denies asylum seekers a fair and legal process to seek refuge in the United States;

Resolved further, That the Board reaffirms its opposition to the use of migrant detention centers in any form, urging Biden administration to swiftly transition away from their use and avoid their re-creation by any other name, instead prioritizing alternatives to detention that uphold human rights, protect the well-being of migrants, and provide fair, efficient, and safe immigration processes;

Resolved further, That the Board will continue supporting its immigrant population by operating LAUSD's Immigrant Family Resource Center at the Robert F Kennedy Community of Schools, providing legal assistance and resources to current and future LAUSD students and families, and will further publicize its online resources on the District homepage to ensure all our migrant families have access to this information;

Resolved further, That the District will continue to support and partner with programs such as Represent LA (formerly the LA Justice Fund), the Coalition for Humane Immigrant Rights, the ACLU of Southern California, along with others at the City and County levels to fund legal services for immigrants, refugees, and asylum-seekers, and to the extent permissible by law, prohibit local resources, property, or personnel from being used for federal immigration enforcement; and, be it finally,

Resolved, That the Board directs the Superintendent and Office of Government Affairs to advocate on its behalf for the federal government to end the Biden's administration harmful and illegal asylum ban and instead adopt a comprehensive and compassionate approach to immigration.